

Central concept and classification

CLASSIFICATION MATRIX

- ├─ constitutional category
- ├─ legal source
- └─ exact consequence

ROOT QUESTION

How can India share governmental language without declaring a national language?

- |
- +--> UNION OFFICIAL: Art. 343 -> Hindi, Devanagari
- +--> STATE OFFICIAL: Art. 345 -> one or more languages / Hindi
- +--> COURT / LAW: Art. 348 + statutory routes
- +--> SCHEDULED: Eighth Schedule -> 22, limited constitutional links
- +--> EDUCATION: Arts. 29-30, 350A + policy

CONTROL

official != national | scheduled != official everywhere | policy != Constitution.

Chronology and constitutional compromise

CHRONOLOGY SEQUENCE

└─ founding bargain
▼
└─ statutory settlement

IMMEDIATE REPLACEMENT ----
CONTINUITY / FEDERALISM --/

> MUNSHI-AYYANGAR COMPROMISE, SEPTEMBER 1949

1950 Constitution -> Hindi official + English transition + Parliament power

1955 B.G. Kher Commission -> 1957 G.B. Pant parliamentary examination

1963 Act -> 1965 transition/agitations -> 1967 amendment, effective 8 Jan 1968

1976 Rules -> administrative communication architecture.

LIMIT

The compromise is historical description; the enacted text controls.

Article 343 clause mechanism

CLAUSE MECHANISM

- └─ default and transition
- └─ parliamentary continuation

343(1) CONSTITUTIONAL DEFAULT

Hindi language | Devanagari script | international form of Indian numerals



343(2) FIFTEEN YEARS, 1950-1965

English continues; President could add Hindi and Devanagari numerals



343(3) PARLIAMENTARY POWER

law may provide for English and/or Devanagari numerals after the period



OLA 1963 SECTION 3

English continues in addition to Hindi; no automatic 1965 switch-off.

Article 344 consultative architecture

CONSULTATIVE HIERARCHY

- └ Commission recommendations
- └ parliamentary scrutiny and direction

PRESIDENT -> Commission at 5-year and 10-year points

- +--> progressive Hindi use
- +--> restrictions on English
- +--> Article 348 language
- +--> numerals / referred communication matters

↓

CLAUSE (3) BALANCE

advancement + just claims of non-Hindi areas in public services

↓

30-member Committee: 20 LS + 10 RS, elected PR-STV

↓

report to President -> possible directions.

CONTRAST

Article 344 committee != OLA section 4 statutory committee.

Section 3 bilingual settlement

COMMUNICATION MATRIX

- external federal routes
- internal bilingual safeguards
- discontinuance lock

SECTION 3(1)

English may continue in addition to Hindi for Union purposes and Parliament

- +--> Union <-> non-Hindi State: English shall be used
- +--> Hindi State -> non-Hindi State: Hindi + English translation
- +--> voluntary Hindi communication remains possible

SECTION 3(2) internal translation until working knowledge

SECTION 3(3) specified documents in both Hindi and English

SECTION 3(4) efficiency + public interest + employee non-disadvantage

SECTION 3(5) all relevant States + each House -> specified discontinuance.

State language and communication tree

FEDERAL BRANCH TREE

- ├─ State choice and communication
- └─ minority-language recognition

ARTICLE 345

State Legislature -> one or more languages in use OR Hindi
-> all or specified official purposes
-> English continues until State law changes it

ARTICLE 346

Union-authorized language -> State-State / State-Union communication
two or more States may agree on Hindi

ARTICLE 347

demand -> President satisfied of substantial proportion
-> recognition for State/part/purpose

CASE

U.P. Hindi Sahitya (2014): adopting Hindi does not exhaust Art. 345 power.

Courts and authoritative-text gates

AUTHORITY GATEWAY

- └─ proceedings route
- └─ judgment and text routes

ARTICLE 348(1)

SC + HC proceedings -> English until Parliament otherwise provides
specified authoritative legal texts -> English

ARTICLE 348(2)

Governor + previous President consent -> Hindi/State language in HC proceedings
PROVISO -> not judgment, decree or order

SECTION 7

non-English HC judgment/decreed/order in addition to English
+ High Court-authorised English translation

ART. 348(3) / ss.5-6 / 1973 Act

specified authoritative translation routes.

LIMIT

An ordinary or machine translation is not automatically authoritative.

Legislature, transition and grievance access

LEGISLATIVE-ACCESS SEQUENCE

- └─ time-bound procedure and debate
- └─ grievance representation

ARTICLE 349

first fifteen years only -> prior President sanction for specified Art. 348 bills
after considering Art. 344 materials

ARTICLE 120

Parliament business -> Hindi or English; mother-tongue permission
section 3(1)(b) -> continued English

ARTICLE 210

State legislature -> State official language(s), Hindi or English
+ mother-tongue permission; authoritative text still follows Art. 348

ARTICLE 350

every person -> grievance representation -> language used in Union/State.

Minority safeguards and case doctrine

SAFEGUARD MATRIX

- facilities and reporting
- rights and choice
- proposition-controlled cases

ARTICLE 350A

State/local authority -> endeavour -> adequate mother-tongue facilities
-> primary stage -> linguistic-minority children

ARTICLE 350B

President-appointed Special Officer -> investigate safeguards -> report
-> Parliament + concerned States

RIGHTS LINK, BOUNDED

Art. 29 conservation/admission | Art. 30 minority institutions
Art. 14 non-arbitrariness | Art. 19(1)(a) protected choice in context

CASES

Gujarat University (1963) competence | T.M.A. Pai (2002) minority framework
Associated Management (2014) medium choice; Art. 350A not compulsion.

Hindi development, Schedule and policy debate

POLICY COMPARISON

- Hindi development and scheduled recognition
- education policy and federal debate

ARTICLE 351

- promote Hindi -> medium for composite culture
- > assimilate Hindustani + Eighth-Schedule forms without harming genius
- > vocabulary primarily Sanskrit, secondarily other languages

EIGHTH SCHEDULE

- 14 original -> 21st Sindhi -> 71st K-M-N -> 92nd B-D-M-S -> 96th Odia name
- CURRENT TOTAL 22 | Art. 344 representation + Art. 351 enrichment

THREE-LANGUAGE FORMULA

- education policy, not constitutional command

DEBATE

- promotion / capability <---- federal choice ----> imposition / unequal burden.

Reform, PYQ and answer synthesis

ANSWER SYNTHESIS

- └─ access problem and reform process
- └─ PYQ route and qualified conclusion

ACCESS PROBLEM

English barrier | translation delay | digital divide | minority-facility gap

RESPONSE

multilingual intake -> trained interpretation -> machine assistance
-> human legal review -> authority label -> version control -> correction route

VERIFIED PYQ

2024 Q72 -> 71st Amendment = Konkani + Manipuri + Nepali

MAINS ANSWER SPINE

distinction -> history -> Arts. 343-351 -> 1963/1967 settlement
-> State/court/minority boundaries -> Schedule/policy -> tensions -> reform

QUALIFIED CONCLUSION

Promote language through capacity and consent; preserve exact legal routes,
authoritative texts, equal access and India's multilingual federal compact.